

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jeffrey Tsui	Team: Squad #15	CCRB Case #: 202204875	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Monday, 07/25/2022 2:00 PM	Location of Incident: 120th Precinct stationhouse	18 Mo. SOL 1/25/2024	Precinct: 120
Date/Time CV Reported Mon, 07/25/2022 6:32 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 07/25/2022 6:32 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Martin Haber	29395	934741	120 PCT
2. PO Salvatore Balistreri	10442	960199	120 PCT
3. PO Nicholas Bocchino	25780	971835	120 PCT
4. SGT Andrew Tagliaferro	00207	962827	123 PCT
5. Sam Lam	02167	965777	

Officer(s)	Allegation	Investigator Recommendation
A . PO Salvatore Balistreri	Force: Police Officer Salvatore Balistreri hit § 87(2)(b) against an object.	A . Within NYPD Guidelines
B . PO Salvatore Balistreri	Abuse: Police Officer Salvatore Balistreri did not obtain medical treatment for § 87(2)(b)	B . Unable to Determine
C . PO Salvatore Balistreri	Abuse: Police Officer Salvatore Balistreri refused to provide his name to § 87(2)(b)	C . Unable to Determine
D . PO Salvatore Balistreri	Abuse: Police Officer Salvatore Balistreri refused to provide his shield number to § 87(2)(b)	D . Unable to Determine
E . PO Martin Haber	Abuse: Police Officer Martin Haber did not obtain medical treatment for § 87(2)(b)	E . Unable to Determine
F . PO Martin Haber	Abuse: Police Officer Martin Haber refused to provide his name to § 87(2)(b)	F . Unable to Determine
G . PO Martin Haber	Abuse: Police Officer Martin Haber refused to provide his shield number to § 87(2)(b)	G . Unable to Determine
H . PO Nicholas Bocchino	Abuse: Police Officer Nicholas Bocchino refused to provide his name to § 87(2)(b)	H . Unable to Determine
I . PO Nicholas Bocchino	Abuse: Police Officer Nicholas Bocchino refused to provide his shield number to § 87(2)(b)	I . Unable to Determine
J . SGT Andrew Tagliaferro	Abuse: Sergeant Andrew Tagliaferro refused to provide his name to § 87(2)(b)	J . Unable to Determine
K . SGT Andrew Tagliaferro	Abuse: Sergeant Andrew Tagliaferro refused to provide his shield number to § 87(2)(b)	K . Unable to Determine
L . Sam Lam	Abuse: Sam Lam refused to provide their name to § 87(2)(b)	L . Miscellaneous - Subject Resigned
M . Sam Lam	Abuse: Sam Lam refused to provide their shield number to § 87(2)(b)	M . Miscellaneous - Subject Resigned

Case Summary

On, July 25, 2022, § 87(2)(b) file this complaint with the CCRB over the phone.

On Monday, July 25, 2022, at approximately 2:00 PM, § 87(2)(b) entered the 120th Precinct stationhouse to file a complaint against the mother of his son. § 87(2)(b) entered the first floor vestibule waiting area. § 87(2)(b) approached the opened sliding glass window and spoke with Police Officer Salvatore Balistreri of the 120th Precinct, who was on the other side. PO Balistreri closed the sliding window on § 87(2)(b)'s head (**Allegation A: Force, Within NYPD Guidelines**). § 87(2)(b) requested medical attention from PO Balistreri, and he ignored him (**Allegation B: Abuse of Authority, Unable to Determine**). § 87(2)(b) asked PO Balistreri for his name and shield number and at this time, PO Balistreri walked away from the sliding window (**Allegation C: Abuse of Authority, Unable to Determine**) (**Allegation D: Abuse of Authority, Unable to Determine**). Police Officer Nicholas Bocchino, Police Officer Martin Haber, Sergeant Andrew Tagliaferro, and Police Officer Sam Lam of the 120th Precinct enter the vestibule waiting area and approached § 87(2)(b). § 87(2)(b) asked PO Haber for medical attention, and he did not respond (**Allegation E : Abuse of Authority, Unable to Determine**). § 87(2)(b) asked PO Bocchino, PO Haber, SGT Tagliaferro and PO Sam for their names and shield numbers. The officers ignored § 87(2)(b) and escorted him out of the building (**Allegation F : Abuse of Authority, Unable to Determine**) (**Allegation G: Abuse of Authority, Unable to Determine**) (**Allegation H: Abuse of Authority, Unable to Determine**) (**Allegation I: Abuse of Authority, Unable to Determine**) (**Allegation J: Abuse of Authority, Unable to Determine**) (**Allegation K: Abuse of Authority, Unable to Determine, Miscellaneous – Subject Resigned**) (**Allegation L: Abuse of Authority**) (**Allegation M: Abuse of Authority, Miscellaneous – Subject Resigned**). There were no arrests made or summonses issued as of result of this incident.

The investigation received stationhouse security footage for this incident (**BR10 and BR11**).

Findings and Recommendations

Allegation (A) Force: Police Officer Salvatore Balistreri hit § 87(2)(b) against an object.

§ 87(2)(b) stated (**BR1**) that he arrived at the 120th Precinct stationhouse to file a complaint against his son's mother because she had not been providing updates to him regarding his child's whereabouts. § 87(2)(b) entered the front vestibule waiting area of the stationhouse alone and walked up to the sliding partition window before the interior doors. The window was open, and PO Balistreri was behind it. § 87(2)(b) extended and leaned his upper torso and head into the window frame and told PO Balistreri that the mother of his child has an order of protection against him, but he has permission to contact her via text message. PO Balistreri told § 87(2)(b) to not contact her. § 87(2)(b) told PO Balistreri that he needed his help. PO Balistreri asked § 87(2)(b) "What happened?" § 87(2)(b) said that he wanted his son's mother to provide updates to him regarding his son. PO Balistreri told § 87(2)(b) "You can't. Just don't do it. That's it". PO Balistreri closed the sliding window on the left side of § 87(2)(b)'s head. The window made physical contact with § 87(2)(b)'s left eyebrow. § 87(2)(b) felt a stinging sensation but did not sustain injuries.

PO Balistreri stated (**BR2**) that on the day of the incident, he was assigned as the 120th Precinct property officer, an administrative assignment within the stationhouse. When § 87(2)(b) entered the waiting area, PO Balistreri was at the telephone switchboard desk and making photocopies of documents. § 87(2)(b) approached the partition window that separated the telephone switchboard desk and the waiting area. PO Balistreri stated the window was approximately two feet tall and a foot wide, and was directly in front of the telephone switchboard desk. § 87(2)(b) asked PO

Balistreri for assistance and PO Balistreri replied with answers. PO Balistreri did not recall what § 87(2)(b) asked him nor how he responded. § 87(2)(b) screamed and yelled, and his saliva flew at PO Balistreri's direction. PO Balistreri closed the sliding window in an attempt to separate himself from § 87(2)(b) and hoped for him calm down. PO Balistreri stated that the window did not make physical contact with § 87(2)(b) when he shut it. After PO Balistreri shut the sliding window, § 87(2)(b) slid the window open and hit the left side of his face on the glass. § 87(2)(b) yelled loudly and accused PO Balistreri of slamming the window on his face.

According to AIDED Report § 87(2)(b) (BR12), prepared by PO Birch, he stated that § 87(2)(b) had a conversation with PO Balistreri alleged that he was injured in his left eye after PO Balistreri closed the sliding window. EMS responded to the stationhouse and § 87(2)(b) refused medical attention.

According to AIDED Report #§ 87(2)(b) (BR13), prepared by PO Balistreri, § 87(2)(b) sustained injury, pain, and discomfort to the left eye. § 87(2)(b) refused medical attention.

The investigation received the 120th Precinct surveillance camera footage that captured video of the first floor vestibule waiting area (BR10). The footage is not equipped with audio. At video runtime 32:07, § 87(2)(b) enters the stationhouse waiting area. § 87(2)(b) immediately walks over to the opened sliding window and appears to speak with someone behind it. § 87(2)(b) extends one half of his head and the upper half of his torso beyond the window frame into the telephone switchboard desk. § 87(2)(b) moves his hands and moves his body as he speaks. At video runtime 33:03, the sliding window slides towards § 87(2)(b) and very briefly makes physical contact with the top left corner of § 87(2)(b)'s head. § 87(2)(b) immediately slides the window back in the fully opened position. § 87(2)(b) jumps backwards, appears to speak while pointing to this head. § 87(2)(b) does not appear to be bleeding or have any open wounds as of result. The sliding window remained open.

The investigation received the 120th Precinct surveillance camera footage that captured video of the first floor telephone switchboard desk immediately behind the sliding window in the waiting room vestibule (BR11). At video runtime 32:00, PO Balistreri, who is seen next to the telephone switchboard desk making photocopies in a blue t-shirt and grey pants. At video runtime 32:20, § 87(2)(b) speaks with PO Balistreri. At video runtime 32:45, § 87(2)(b) extends his head and upper torso through the window. At video runtime 33:03, PO Balistreri slides the window in an attempt to close it with his right hand.

PO Balistreri was presented with this video from video runtime 33:03 until video runtime 33:08. PO Balistreri identified himself to be the officer next to the window. PO Balistreri stated that at this time, he attempted to close the window because § 87(2)(b)'s saliva was getting on him. When PO Balistreri slid the window, § 87(2)(b) slammed the window back open and hit himself in the head on the window frame.

Although PO Balistreri stated that § 87(2)(b) struck himself in the head with the window, the video evidence obtained showed the partition window briefly making physical contact with the left side of § 87(2)(b)'s head when PO Balistreri closed it. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Therefore, it is recommended that **Allegation A** be closed as *within NYPD Guidelines*.

Allegation (B): Police Officer Salvatore Balistreri did not obtain medical treatment for

§ 87(2)(b)

Allegation (C): Police Officer Salvatore Balistreri refused to provide his name to

§ 87(2)(b)

Allegation (D): Police Officer Salvatore Balistreri refused to provide his shield number to

§ 87(2)(b)

Allegation (E): Police Officer Martin Haber did not obtain medical treatment for

§ 87(2)(b)

Allegation (F): Police Officer Martin Haber refused to provide his name to

§ 87(2)(b)

Allegation (G): Police Officer Martin Haber refused to provide his shield number to

§ 87(2)(b)

Allegation (H): Police Officer Nicholas Bocchino refused to provide his name to

§ 87(2)(b)

Allegation (I): Police Officer Nicholas Bocchino refused to provide his shield number to

§ 87(2)(b)

Allegation (J): Sergeant Andrew Tagliaferro refused to provide his name to

§ 87(2)(b)

Allegation (L): Sergeant Andrew Tagliaferro refused to provide his shield number to

§ 87(2)(b)

Allegation (L): Sam Lam refused to provide their name to

§ 87(2)(b)

Allegation (M): Sam Lam refused to provide their shield number to

§ 87(2)(b)

§ 87(2)(b) stated (BR1) that after PO Balistreri struck his face with the partition window, he moved back and began to record the officer on his cellphone. PO Balistreri told § 87(2)(b) to back away and to cease recording. § 87(2)(b) told PO Balistreri “What the fuck, you just hit me with the window, bro!” PO Balistreri replied that he did not. § 87(2)(b) asked PO Balistreri for medical attention and requested PO Balistreri for his name and shield number. PO Balistreri did not obtain medical attention nor provided his name and shield number for § 87(2)(b). PO Balistreri ran to the back of the stationhouse and yelled out, “Somebody get this guy, he is recording me.” At this time, PO Haber, PO Bocchino, PO Lam, and SGT Tagliaferro approached § 87(2)(b) in the waiting area vestibule. § 87(2)(b) did not know where the officers came from. PO Haber stood in the front while the other officers stood behind him. PO Haber, PO Bocchino, and SGT Tagliaferro instructed § 87(2)(b) to cease recording on his cellphone. PO Haber walked closer to § 87(2)(b) and told him that he had five seconds to leave the stationhouse. PO Haber counted backwards from five. § 87(2)(b) refused to leave and requested the officers’ names and shield numbers. None of the officers responded. § 87(2)(b) told PO Haber that he needed medical attention, and he did not respond. § 87(2)(b) walked out of the stationhouse and called 911 and requested an ambulance to the location. When the EMTs arrived, § 87(2)(b) was treated with an ice pack, but he was not removed to the hospital.

The investigation requested cellphone video from § 87(2)(b). § 87(2)(b) did not return the request. The investigation did not obtain any medical records because § 87(2)(b) did not sign any HIPAA forms.

PO Balistreri stated (BR2) that after § 87(2)(b) hit the left side of his face on the sliding partition window, he did not appear to have any injuries. PO Balistreri stated that PO Haber, PO Bocchino, SGT Tagliaferro, and PO Lam heard the dispute between himself and § 87(2)(b) and they entered the waiting area to investigate. § 87(2)(b) requested PO Balistreri’s name and shield number, and he provided it to § 87(2)(b) twice. § 87(2)(b) continued to yell and started to video record on his cellphone and PO Balistreri returned to his office approximately ten feet away from the telephone switchboard desk. At an unspecified time, an ambulance arrived at the stationhouse for § 87(2)(b) however, PO Balistreri did not know who requested it. PO Balistreri did not know whether § 87(2)(b)

§ 87(2)(b) requested for medical attention or the names and shields from the other officers nearby.

PO Haber stated **(BR3)** that he did not recall the incident. During PO Haber's CCRB interview, he was presented with the 120th Precinct surveillance camera footage that captured video of the first floor waiting area. PO Haber was presented with the video runtime 32:07 until video runtime 34:16, which captures PO Haber entering the area with PO Bocchino, SGT Tagliaferro, and PO Lam entering the waiting area. Upon viewing the video, PO Haber stated that he recalled § 87(2)(b) creating a disturbance inside the stationhouse on the day of the incident. PO Haber stated that from the video presented, he appears to be speaking with § 87(2)(b). PO Haber did not recall what that conversation with § 87(2)(b) was about. PO Haber stated that he did not recall whether § 87(2)(b) requested medical attention. PO Haber stated that an ambulance did arrive at the stationhouse; however, he did not know the reason or who called for it. PO Haber did not recall whether § 87(2)(b) asked him or any officer for their names and shield numbers. PO Haber stated that if § 87(2)(b) requested his identifying information, he would have provided it to him.

PO Bocchino stated **(BR4)** that on the day of the incident, his assignment was stationhouse security. PO Bocchino heard a verbal altercation between § 87(2)(b) and PO Balistreri, and he entered the vestibule waiting area to investigate. Upon entering the front doors, PO Bocchino observed § 87(2)(b) extending half of his torso beyond the window frame yelling at PO Balistreri. § 87(2)(b) yelled out that PO Balistreri "assaulted" him and that he had an injury on either his finger or nose. PO Bocchino did not observe the alleged assault. PO Bocchino stated that an ambulance was not called for § 87(2)(b) because he did not observe any apparent injuries on his person. § 87(2)(b) began to record PO Balistreri with his cellphone. PO Bocchino approached § 87(2)(b) by the window and told him that he cannot record inside the stationhouse because it was against NYPD policy. At this time, PO Haber, SGT Tagliaferro, and PO Lam entered the area and repeated to § 87(2)(b) that he cannot record inside the stationhouse. PO Haber and the other officers escorted § 87(2)(b) out of the front door. PO Bocchino stated that when § 87(2)(b) began recording PO Balistreri, he requested the officer's name and shield number, and that PO Balistreri provided it to him. PO Bocchino stated that he did not recall whether § 87(2)(b) requested the names and shield numbers from either himself or other officers present.

§ 87(2)(g)
SGT Tagliaferro stated that § 87(2)(b) did not appear to have any physical injuries. SGT Tagliaferro did not recall whether § 87(2)(b) requested medical attention from officers. An ambulance arrived at the stationhouse for § 87(2)(b) at a specified time, however SGT Tagliaferro did not know who called for it. SGT Tagliaferro stated that he did not recall whether § 87(2)(b) requested the names and shield numbers from either himself or another officers present.

The investigation was unable to interview PO Lam because he resigned from the NYPD on January 4, 2023.

According to Events # § 87(2)(b) **(BR14)**, § 87(2)(b) called 911 to report that an officer shut a window on him, hitting him in the eye. § 87(2)(b) requested EMS to the location. § 87(2)(b) also stated that officers escorted him out of the stationhouse and refused to provide their names to him.

According to the 120th Precinct surveillance camera footage that captured video of the first floor telephone switchboard desk immediately behind the sliding window **(BR11)**, at timestamp 2:03:01, PO Balistreri slides the window to close. PO Balistreri appears to be speaking to § 87(2)(b) and points his finger at them. At timestamp 2:03:16, PO Balistreri continues to speak with § 87(2)(b) and point towards the front entrance doors with his right hand. PO Balistreri appears to continue to

speak with § 87(2)(b) until timestamp 2:03:38, and he walks to the back of the stationhouse.

According to the 120th Precinct surveillance camera footage that captured video of the first floor vestibule waiting area (**BR10**), at timestamp 20:3:58, PO Haber approaches § 87(2)(b) from the back and then joins SGT Tagliaferro, Bocchino and PO Lam. PO Haber and § 87(2)(b) appear to be in conversation. At timestamp 2:04:05, the officers escort § 87(2)(b) out the front door by walking behind him,

It is undisputed that PO Balistreri spoke with § 87(2)(b) after he attempted to close the sliding window. The investigation did not receive video of the incident recorded by § 87(2)(b). The stationhouse security video obtained was not equipped with audio. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Therefore, it is recommended that **Allegations B, C, D, E, F, G, H, I, J and K** be closed as **Unable to Determine**.

PO Lam resigned from the NYPD; therefore, it is recommended that **Allegation L** and **Allegation M** be closed as **Miscellaneous – Subject Resigned**.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to one other CCRB complaint and has been named as a victim in twenty-one total allegations (Board Review ##):
 - § 87(2)(b)
 - § 87(2)(b)
 - § 87(2)(b)
 - § 87(2)(b)
 - § 87(2)(b)
 - § 87(2)(b)
- PO Balistreri has been a member of service for seven years and has been a subject in two other CCRB complaints and six total allegations, none of which were substantiated. § 87(2)(g)
- PO Haber has been a member of service for nineteen years and has been a subject in further other CCRB complaints and thirty-two total allegations, none of which were substantiated. § 87(2)(g)
- PO Bocchino has been a member of service for two years and has been a subject in two other CCRB complaints and six total allegations, none of which were substantiated. § 87(2)(g)
- SGT Tagliaferro has been a member of service for six years and has been a subject in two other CCRB complaints and five total allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of March 13, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (**BR7**).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED].

[§ 87(2)(g)]

[REDACTED]
[REDACTED]

Squad: 15

Investigator:	<u>Jeffrey Tsui</u>	<u>09/15/2023</u>	<u>10/02/2023</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date